

establish that (1) there was some hazard on the roof that (2) Defendant was aware of and (3) Plaintiff could not have reasonably discovered, and (4) Defendant failed to disclose.

Plaintiff has failed to provide any evidence that this exception to the *Privette* Doctrine applied.

The above analysis applies to Plaintiff's general negligence and premises liability – negligence causes of action.

C. Willful Failure to Warn – Civil Code § 846

Plaintiff's Complaint also includes a claim under Civil Code section 846, which states, in pertinent part:

"An owner of any estate or any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others **for any recreational purpose** or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering **for a recreational purpose**, except as provided in this section." (Civ. Code § 846 (a) emphasis added.)

This statute does not apply to claims by a person that was hired to perform work on a person's property or structures located thereon. The allegations of the Complaint are clear that Plaintiff was not on the Property for 'recreational purposes,' but instead as part of his job working for Cornell. Plaintiff also fails to provide any evidence to support this cause of action.

Evidentiary Issues

Plaintiff's Objections 1-5: Overruled.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

11. 9:00 AM CASE NUMBER: C25-00790
CASE NAME: ANGEL VILLAFAN VS. ONPOINT INDUSTRIAL SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT INDUSTRIAL SERVICES, LLC

TENTATIVE RULING:

Summary

Defendant Onpoint Industrial Services, LLC ("Defendant") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Jason D. Friedman, Esq. The Motion is **granted**. No appearance is required on May 13, 2026.

Background

On November 14, 2025, Defendant filed Notice of Hearing, through Counsel Constangy Brooks, Et. Al., and the Verified Application for Admission of Jason D. Friedman to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Jason D. Friedman, and the Declaration of Counsel Kenneth D. Sulzer. The Proof of Service shows that service was accomplished via electronic service on November 14, 2025. The Court did not receive timely oppositions to this

Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Jason D. Friedman. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Friedman is an attorney licensed to practice in the State of Virginia and Federal District Courts of Maryland, the District of Columbia and Virginia. He is employed by Constangy Brooks Smith & Prophete, LLP. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. Again, no timely opposition was filed with the Court.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders. The Court finds good cause to admit Mr. Friedman *pro hac vice* to practice before the Courts of the State of California for this action.

Ruling

Defendant's motion is **granted**. Jason D. Friedman, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order granting Verified Application of Pat Lundvall to appear as Counsel *Pro Hac Vice* lodged with the Court on November 14, 2025, with a copy of this ruling attached thereto. No appearance is required on May 13, 2026.

12. 9:00 AM CASE NUMBER: C25-00869
CASE NAME: ELLA SPASSOVA VS. KINSHASA HUNTER
***HEARING ON MINOR'S COMPROMISE RE: ELLA ROSE SPASSOVA**
FILED BY: SPASSOVA, ELLA ROSE

TENTATIVE RULING:

Summary

Petitioner Cherry Rose Spassova's Petition for Approval of Compromise of Ella Rose Spassova's ("Minor") Claim filed on January 23, 2026, is **granted**, as set forth below. No appearance is required at the May 13, 2026 hearing.

Background

On January 23, 2026, Petitioner Cherry Rose Spassova's, parent and guardian *ad litem* for her child, Ella Rose Spassova (DOB 2/1/2024), filed the Petition through counsel Michael D. Herman, to compromise the claim that Minor had against Kinshasa Hunter, Barbara Brooks, Pauletta Borroughs related to an accident that occurred on August 22, 2024 in Antioch, CA. In that accident, Minor sustained injuries including to her right leg, along with emotional trauma. Petitioner represents that